

11	Truong vs. Le 2020-01149479	Motion for Attorney Fees Defendant Phillip Bui Le moves for Attorneys’ Fees and Costs After Judgment. . Defendant seeks \$49,259.50 in attorneys’ fees and \$11,690.94 in costs for a total of \$60,950.44 in connection with his defense of Plaintiff’s partition action. (Defendant erroneously requests a total of \$60,960.44.) <u><i>Legal standard</i></u> The costs of partition include, among other items, the “[r]easonable attorney’s fees incurred or paid by a party for the common benefit,” and “[o]ther disbursements or expenses determined by the court to have been incurred or paid for the common benefit.” (Code Civ. Proc., § 874.010, subds. (a), (e).) The costs of partition also include “reasonable expenses, including attorney’s fees, necessarily incurred by a party for the common benefit in prosecuting or defending other actions or other proceedings for the protection, confirmation, or perfection of title” (Code Civ. Proc., § 874.020.) “[T]he ‘common benefit’ in a partition action is the proper distribution of the ‘respective shares and interests in said property by the ultimate judgment of the court.’” This sometimes will require that ‘controversies’ be ‘litigated’ to correctly determine those shares and interests, but this ultimately can be for the common benefit as well. The fact that a party resists the partition does not change this.” (Orien v. Lutz (2017) 16 Cal.App.5th 957, 968 [cleaned up].) Defendant contends its “defense was vital to discern and prove the true owner of the property was Intervenor Kathy Nguyen and therefore was for the common benefit of the property. Le’s actions contributed to the resolution of the ownership dispute concerning
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	the Subject Property and conferred a common benefit.” (Mtn. at 7:4-9.) Here, following a bench trial, the Court found intervenor Kathy Nguyen was the owner of full 100% beneficial and legal title of the property. Plaintiff did not file an opposition to the motion and thus does not dispute Defendant’s contention this finding was for the “common benefit” as it determined the proper distribution of the property’s interests. Section 874.040 provides, “Except as otherwise provided in this article, the court shall apportion the costs of partition among the parties in proportion to their interests or make such other apportionment as may be equitable.” “[S]ection 874.040] simply states that the trial court must apportion the costs incurred in a partition action based upon either the parties’ interests in the property, or equitable considerations. The statute’s broad language does not limit the trial court’s equitable discretion” (Lin v. Jeng (2012) 203 Cal.App.4th 1008, 1025, emphasis in original.) Here, following the bench trial, the Court found: - Truong testified he obtained \$50,000 for the \$100,000 downpayment from a friend, which he paid to Le. The “friend” did not testify, nor did Truong have any documentation of the \$50,000 or the transfer to Le. - Truong testified the other \$50,000 came from Chanh, but he did not know where she got it. - Truong admitted making no mortgage payments (but for three initial payments in an amount what was incorrect and for which there was no documentary support), making no tax, insurance, utility payments, or any contribution toward remodeling the property. - Conversely, Kathy, Chanh, and Le testified the property was purchased for Kathy to be the beneficial owner, that because Kathy had bad credit, Le (her brother-in-law) was to be on the loan and
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		have legal title, and that Truong was named on legal title to protect Kathy should some fallout occur with Le. - Kathy, Chanh, and Le each testified the down payment funds came as part of a \$250,000 gift from Chanh to Kathy. - Kathy provided testimony and extensive documentation demonstrating she made all payments for the mortgage, taxes, insurance, utilities, and remodel expenses and that she made all decisions regarding management of the property. (Martinez Decl., ¶ 6, Ex. 1, ROA 204.) Ultimately, the Court found “[a]ll this evidence offered by Kathy, Chanh and Le is consistent and is opposed only by Truong’s self-serving testimony without documentation. This evidence is clear and convincing in support of a Resulting Trust in favor of Kathy.” (Martinez Decl., ¶ 6, Ex. 1, ROA 204.) The Court’s findings and ruling demonstrate given the evidence and testimony Truong was likely well aware he was not entitled to a 50% share of Kathy Nguyen’s 100% interest in the property. As set forth above, section 874.040 provides the court may also “make such other apportionment as may be equitable.” The Court therefore finds Defendant is entitled to attorneys’ fees and apportions the cost of those fees to Plaintiff. (See <i>Lin v. Jeng</i> (2012) 203 Cal.App.4th 1008, 1025-1027.) Lodestar calculation “[T]he fee setting inquiry in California ordinarily begins with the ‘lodestar,’ i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate.” (<i>PLCM Group v. Drexler</i> (2000) 22 Cal.4th 1084, 1095.) “In making its calculation [of a reasonable hourly rate], the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees, the difficulty or complexity of the litigation to which that skill was applied [citations], and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases.”
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		(Morris v. Hyundai Motor America (2019) 41 Cal.App.5th 24, 41 [citations omitted]) Defendant seeks fees in the amount of \$49,259.50 based on 139.05 hours of attorney and staff work on this matter. (Martinez Decl., Ex. 3.) Hourly rates of \$525 for attorneys, \$275 for paralegals, and \$200 for law clerks (Martinez Decl., ¶ 8) appear to be reasonable for this type of litigation in the local legal community. The hours spent litigating this matter, which included discovery, motion practice, and trial (Martinez Decl., ¶¶ 4-7), also appear reasonable. Defendant also seeks \$11,690.94 in costs. (Martinez Decl., ¶ 9.) While Defendant sets forth the items comprising the costs (Mtn. at 9:4-10:4), these items total \$10,410.61, not \$11,690.94. Given no opposition, Plaintiff does not dispute the fees and costs sought. Accordingly, the Court awards Defendant \$49,259.50 in attorneys' fees and \$10,410.61 in costs for a total of \$59,670.11. Tentative Ruling: The Court GRANTS Defendant Phillip Bui Le's Motion for Attorneys' Fees and Costs After Judgment in the reduced amount of \$59,670.11.